



Clause 1 (Contract Scope)

In the rental agreement between Auto Prudente, Lda. (hereinafter referred to as “the lessor”) and the client identified in the first clause of the rental agreement (hereinafter referred to as “the renter”), the following general terms and conditions apply, subject to any derogation or modification made in writing between the parties.

Clause 2 (Renter and Additional Drivers)

- 1 – At the time of signing the rental agreement, the renter and any additional drivers must be at least 25 years old and have at least 2 years driving experience and possess a valid driving licence for class B (cars). If any of those persons are not resident in the EU, they must possess an international driving licence.
- 2 – In case of any breach of the above paragraph, the vehicle will not be delivered, the rental agreement will be terminated, and the renter will be liable for the cancellation fees specified in the table of fees and charges (hereinafter referred to as “the table”) then in force.

Clause 3 (Delivery and Return the Vehicle)

- 1 – All the vehicles, which are delivered or returned outside the premises of the lessor, or the agreed location or office hours, will be charged according to the table then in force.
- 2 – The rented vehicle is delivered to the renter at the date of signature of this rental agreement, subject to the right of the lessor to require the payment of a sum as a deposit.
- 3 – The rented vehicle is delivered to the renter in good working order, clean, equipped with all accessories and tyres in good condition.
- 4 – The renter agrees to keep the vehicle in a good condition and clean and undertakes to return it to the lessor with all documents and the accessories relating to the vehicle in the same condition as it was delivered to him (or her) and at the date specified as the end of this rental agreement or on the date specified for its return. The renter will be liable to pay for any loss or damage to the vehicle, accessories, equipment or parts of the vehicle will be the responsibility of the renter and will be charged to the renter according to the table then in force.
- 5 – The renter undertakes to return the vehicle on the end of this rental agreement, or on the date specified for its return, to the premises of the renter or to the agreed place, within office hours, unless otherwise agreed.
- 6 – If the vehicle is returned to a different location or at a different time to that referred to in the above paragraph, the renter is responsible for all loss or damage caused to the lessor, as such loss or damage can be established and proved in writing.
- 7 – The renter is responsible for all loss or damage including the theft of the vehicle, if it is not delivered to an employee of the renter.
- 8 – If the renter fails to return the vehicle on the due date, the renter will be liable to pay to a lessor, in addition to the total amount of the rent due for the period of the delay, a penalty of 50 € per day, or 25€ per part of a day.
- 9 – If the renter returns the vehicle with defects or needing repairs, which are contrary to the prudent or normal use of the vehicle, the renter will be liable to indemnify the lessor for and from the cost of any repairs.
- 10 – If the vehicle is used in a way which constitutes a breach of any of the conditions of this rental agreement, that agreement will be automatically terminated, without need for any court or other legal action.
- 11 – In the case referred to in the above paragraph, notwithstanding the automatic termination of the rental agreement, the lessor reserves the right to recover the vehicle at any time, without prior notice, and the renter will be liable to pay to the lessor any charges and expenses incurred by the lessor in recovering the vehicle.

Clause 4 (Leaving Portugal)

- 1 – Subject to the following paragraph, the renter is not allowed to take the vehicle out of Portugal. If the renter does so, the renter will be liable to pay to the lessor, in addition to the rent, a penalty of 3,00 € per km travelled throughout the whole of the rental period (whether in or outside Portugal) and will be liable to pay to the lessor for any loss or damage, including the theft of the vehicle.
- 2 – The renter can be permitted to drive the vehicle in Spain but only by an express provision in the rental agreement to this effect and upon a payment to the lessor of a fee in accordance with the table then in force.

Clause 5 (Use of Vehicle)

- 1 – The renter is not permitted to make any modifications or changes to the vehicle or to install any accessories or components in, or to affix any publicity or commercial notice on, the vehicle, without the prior written consent of the lessor, under penalty of being considered a possessor in bad faith, in accordance with article 1275.º of the Civil Code.
- 2 – The renter undertakes not to allow the vehicle to be driven by people who are not identified in the rental agreement.
- 3 – The renter and passengers are expressly forbidden to smoke inside the car.
- 4 – The renter undertakes not to use, and not to allow the use of, the vehicle in the following situations:
 - a) To provide public transport of passengers or goods or anything else in exchange for any compensation or remuneration;
 - b) To use the vehicle in competitions, sweepstakes, races, sports events or practice, whether they are official or not;
 - c) To carry goods in violation of customs regulations and tax laws or for any other reason which is illegal;
 - d) To push or pull any vehicle or trailer;
 - e) To carry pets or other animals;
 - f) By anyone under the influence of alcohol, narcotics, psychotropic or other illegal substances;
 - g) To carry passengers or goods in violation of the characteristics of the vehicle as contained in the unique document (Documento Único) of the vehicle.
- 5 – The renter is prohibited from subletting, lending or assigning, in whole or in part, in any form or business, the rights arising from this agreement without the prior written permission of the lessor.
- 6 – The renter is obliged to properly close and lock the vehicle and not to leave inside the vehicle any objects which could provoke the theft or damage to the vehicle.
- 7 – In the event of the loss or destruction, in whole or in part, of the documents, the keys or the tyres of the vehicle, the renter is liable to indemnify the lessor for and from any loss or damage resulting therefrom, including, in particular, any expenses arising from the issue of duplicates, any administrative expenses of the lessor, as such loss or damage can be established and proved in writing to the renter.

Clause 6 (Rental Period and Extension)

- 1 – The rental agreement runs for a minimum period of 24 hours and ends on the date and time and at the place specified in the particular clauses.
- 2 – For the purposes of calculating the rental period, 1 day consists of a period of 24 hours. Any extra hour beyond the rental period is calculated as 1 day or 24 hours more. For the rental period is considered 1 day (24 hours). Any overtime will be calculated as one day, so more 24 hours.
- 3 – If the renter wishes to extend the rental period, the renter must contact the lessor at least 24 hours before the end of that period and ask for that period to be extended. Whether or not the rental period is extended is at the discretion of the lessor.
- 4 – If the lessor does not agree to extend the rental agreement, the renter is obliged to deliver the vehicle on the date and at the place previously agreed. If it is not delivered on that date and at that place, the vehicle will be being run without due authorization and this will be reported immediately to the authorities and all the legal consequences that flow from this will be the renter's responsibility.

Clause 7 (Maintenance and Repair of the Vehicle)

- 1 – If the renter becomes aware of the existence of some mechanical problem in the vehicle, the renter undertakes to immobilize the vehicle immediately and to contact the lessor during office hours. The lessor will tell the renter how to obtain travel assistance outside office hours.
- 2 – If the vehicle is immobilized due to a mechanical breakdown and there is no possibility of an on-site repair, the renter will be transported, if during office hours, to the premises of the lessor and, if outside office hours, to the address specified in the rental agreement.
- 3 – The renter will be liable to pay any expense of towing the vehicle, whether inside or outside Portugal, (to where it will be repaired), if the mechanical breakdown was due to any misuse of the vehicle by the renter.
- 4 – The vehicle must be returned in a clean state, both inside (no rubbish or other waste) and outside, as was in when it was delivered, otherwise the lessor will charge the renter a cleaning fee, according to the table for the time being in force.
- 5 – When the vehicle is returned with a lower amount of fuel than it had when it was delivered to the renter, the renter will be charged the cost of amount of the difference of the missing fuel, which will be proved to the renter.

Clause 8 (Insurance)

- 1 – The rental vehicle has compulsory civil liability insurance in accordance with the terms of the legislation in force and insurance cover for damage to the vehicle itself up to a maximum of Euros: 50 000 000.00, which is valid in Portugal. As the renter is responsible for any damage caused to the rental vehicle, the renter will have to choose one of the following:
 - Option A – CDW** – This covers all the damage to the vehicle in the case of an accident. The renter will be required to pay a variable premium depending on the type of vehicle and the fixed table in the premises of the lessor;
 - Option B – Super CDW** – It covers all damage to the vehicle and the total or partial theft of the vehicle with the renter not being liable to pay for any exemptions or being subject to any payment for reduced premiums.
- 2 – The renter will be solely responsible for all the repair costs and damage to keys, tyres, parts, and the bottom and top of the vehicle body (above the windshield), as these matters are not covered by insurance, where there is no collision with a third party.
- 3 – Only the renter and/or the drivers specified in this rental agreement may take advantage of the option of the insurance cover age above described.

- 4 – The renter will be solely responsible for all damage caused to the vehicle due to driving on roads which do not have a tarred surface, as this is not covered by insurance.
- 5 – In the case of theft of the vehicle, the renter must report the theft to the competent authorities immediately and send a copy of the complaint to the lessor, along with the vehicle keys. If the renter does not do so, all rental agreements and all the insurance cover ceases to be valid and all the costs will fall upon the renter.
- 6 – In case of any accident due to speeding, negligence, driving under the influence of alcohol, narcotics or the consumption of any product that reduces driving ability, the renter will be responsible for all the costs of repair and compensation for the period when the damaged vehicle is off the road, regardless of the insurance option chosen.
- 7 – The renter may also, upon payment of an increase in the daily rate, take advantage of a Personal Accident Insurance (PAI) of the driver and passengers whose maximum amounts are EUR 1 000,00 in case of illness or hospitalization and Euro: 10 000,00 in case of death or disability.

Clause 9 (Accidents)

In the case of any accident, the renter is obliged to follow the following procedures:

- a) To notify immediately the lessor and the police authorities of any accident, theft, vandalism or any other claims;
- b) To obtain all the names and addresses of all those involved, including their telephone numbers, numbers of their driving licences and the place and date where they were issued and even to obtain the registration number and models of vehicles involved as well as their insurers and their insurance policy numbers;
- c) Not to admit any responsibility or blame in case of accidents, which may involve the responsibility of the lessor.

Clause 10 (Payments)

The renter undertakes, expressly, to pay the due amounts to the lessor resulting from the conclusion of this rental agreement, as soon as they are requested, particularly:

- a) The price payable for the rent of the vehicle, depending on the duration of the rental period, including any extension period;
- b) All taxes and charges on the rental of the vehicle or the amount fixed by the lessor in order to refund such taxes and charges;
- c) All the costs charges due to paid by the renter to the lessor under the terms and conditions of this rental agreement, as and when they arise, as such costs and charges will be established and proved by the lessor.

Clause 11 (Infractions)

- 1 – The renter is responsible for paying any fines, penalties, toll fees and fuel during the rental period.
- 2 – The renter agrees to reimburse the lessor for the amount of any fines which the lessor has paid as a result of criminal conduct carried out by the renter and of any expenses incurred by the lessor due to such circumstances, provided that they are duly proved.
- 3 – If the lessor is notified by any public or private body to identify the renter, the renter agrees to pay all administrative expenses incurred by the lessor (in doing so), provided they are duly proved.

Clause 12 (Indemnities)

The lessor is not liable for any damage suffered by the renter or by a third party related to the use of the vehicle, or for any loss or damage to the goods renter, which have been left in the vehicle, or for any loss or anything which happens or any interruption of holidays or trips incurred by the renter as a result of any delay in the delivery (of the vehicle) or for any failure or accidents which do not fall within the express responsibility of the lessor.

Clause 13 (Information and Clarifications)

The renter acknowledges that all the clauses of this rental agreement were available at the time the agreement was concluded and were expressly communicated and explained to the renter and that the renter was fully aware of them